

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Teecie Dove	Team: Squad #02	CCRB Case #: 202309635	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 10/02/2023 4:15 PM	Location of Incident: East Tremont Avenue and Valentine Avenue	18 Mo. SOL 4/2/2025	Precinct: 46		
Date/Time CV Reported Thu, 10/12/2023 10:09 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 10/12/2023 10:09 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Evan Angels	14528	965929	046 PCT
2. SGT Ariel Cruz	01114	951644	046 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Evan Angels	Abuse: Police Officer Evan Angels stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Within NYPD Guidelines
B . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Within NYPD Guidelines
C . PO Evan Angels	Abuse: Police Officer Evan Angels questioned § 87(2)(b)	C . Substantiated
D . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz questioned § 87(2)(b)	D . Substantiated
E . PO Evan Angels	Abuse: Police Officer Evan Angels frisked § 87(2)(b)	E . Substantiated
F . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Substantiated
G . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz failed to provide § 87(2)(b) with a business card.	G . Substantiated
H . SGT Ariel Cruz	Abuse: Sergeant Ariel Cruz failed to provide § 87(2)(b) with a business card.	H . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

§ 87(2)(b) filed this complaint via the CCRB website on October 12th, 2023.

At approximately 4:15 PM on October 2nd, 2023, § 87(2)(b) was in the backseat of a taxi near East Tremont Avenue and Valentine Avenue in the Bronx, and he was not wearing a seatbelt, when the taxi was pulled over by Sergeant Ariel Cruz and Police Officer Evan Angels of the 46th Precinct (**Allegations A and B: Abuse of Authority – Vehicle Stop, Within NYPD Guidelines**). Police Officer Angels explained the reason for the stop, and both he and Sergeant Cruz asked § 87(2)(b) if he had any weapons on him (**Allegations C and D: Abuse of Authority – Question, Substantiated**). Police Officer Angels asked § 87(2)(b) to exit the vehicle before frisking § 87(2)(b) (**Allegation E: Abuse of Authority – Frisk, Substantiated**). Sergeant Cruz then searched the backseat of the taxi for weapons (**Allegation F: Abuse of Authority – Vehicle Search, Substantiated**). Sergeant Cruz did not provide his business card to either § 87(2)(b) or the taxi driver, § 87(2)(b) (**Allegations G and H: Abuse of Authority – Failure to Provide RTKA Card, Substantiated**). § 87(2)(g), § 87(4-b) No summonses or arrests resulted from this incident.

Body-worn camera (BWC) footage was received from the BWCs of Sergeant Cruz (**BR 01**) and Police Officer Angels (**BR 02**). The footage is summarized in IA #27 (**BR 03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Evan Angels stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Sergeant Ariel Cruz stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: Police Officer Evan Angels questioned § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Ariel Cruz questioned § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Evan Angels frisked § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on October 27th, 2023 (**BR 04**). Police Officer Angels was interviewed on February 5th, 2024 (**BR 05**). Sergeant Cruz was interviewed on February 6th, 2024 (**BR 06**), and on April 17th, 2024 (**BR 07**).

It is undisputed that § 87(2)(b) was in the backseat of a moving taxi, and he was not wearing a seatbelt when the taxi was pulled over by Sergeant Cruz and Police Officer Angels.

§ 87(2)(b) stated that, when the officers approached the taxi, Police Officer Angels explained to § 87(2)(b) that the taxi was pulled over because § 87(2)(b) was not wearing a seatbelt. Police Officer Angels then asked § 87(2)(b) if he had any weapons on him, to which § 87(2)(b) said no. Police Officer Angels asked § 87(2)(b) to step out of the vehicle, and then he proceeded to frisk § 87(2)(b) pockets and legs.

Both Sergeant Cruz and Police Officer Angels testified that the reason for the vehicle stop was because § 87(2)(b) was not wearing his seatbelt, and after the taxi was pulled over but before the officers exited their vehicle, § 87(2)(b) made a forward dipping motion while in the backseat of the taxi, in which his head and shoulders disappeared from the officers' view for several seconds. This indicated to both officers that § 87(2)(b) was attempting to conceal a weapon. Neither Sergeant Cruz nor Police Officer Angels observed any other indication that § 87(2)(b) may have been concealing a weapon. Neither Police Officer Angels nor Sergeant Cruz ever observed any object that resembled

a weapon throughout the car stop.

Police Officer Angels stated that, upon approaching the vehicle, he asked § 87(2)(b) if he had any weapons on him, to which § 87(2)(b) said no. Police Officer Angels then asked § 87(2)(b) to step out of the vehicle, and Police Officer Angels frisked § 87(2)(b) waistband and pants pockets. Police Officer Angels never saw any bulges or any other indication that § 87(2)(b) had a weapon, other than § 87(2)(b) initial dipping motion; and Police Officer Angels cited that dipping motion as the sole reason for asking § 87(2)(b) about weapons and for frisking § 87(2)(b). Police Officer Angels did not recover a weapon from this frisk.

Sergeant Cruz stated that, as Police Officer Angels was conducting his frisk, he (Sergeant Cruz) asked § 87(2)(b) if he had “anything” on him. Sergeant Cruz was referring to weapons when he asked this. Sergeant Cruz asked this because of the earlier dipping motion that § 87(2)(b) made in the back seat of the taxi; he had no other reason to believe that § 87(2)(b) may have had a weapon.

Police Officer Angels’ BWC footage (**BR 02**) shows that, at timestamp 01:10, Police Officer Angels approaches § 87(2)(b) car window and explains that the taxi was stopped because § 87(2)(b) is not wearing a seatbelt. After obtaining § 87(2)(b) ID, Police Officer Angels asks § 87(2)(b) if he has any weapons in the car. He explains that he saw § 87(2)(b) “dipping down,” which led him to believe that § 87(2)(b) might be hiding something. § 87(2)(b) says that he does not have anything on him. Upon Police Officer Angels’ request, § 87(2)(b) exits the vehicle. Police Officer Angels then frisks § 87(2)(b) thighs, calves, pants pockets, and waistband. As Police Officer Angels is frisking § 87(2)(b) Sergeant Cruz asks § 87(2)(b) “You got nothing on you, right?” He then explains that the officers saw him make the earlier dipping motion, which gave the officers “probable cause.” Police Officer Angels finishes frisking § 87(2)(b) and he does not recover any weapons from this frisk.

New York State Vehicle and Traffic Law § 1229-C (BR 08) requires that all passengers of taxis wear seatbelts while the vehicle is being operated.

§ 87(2)(g) all parties testified that § 87(2)(b) was not wearing a seatbelt while traveling in a taxi, § 87(2)(g). It is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

The courts have held that the framework set forth in People v. De Bour, 40 N.Y.2d 210 (1976) (**BR 09**) extends to vehicle stops, in that founded suspicion is required for an officer to question a vehicle’s occupants about suspected criminality. People v. Garcia, 20 N.Y.3d 317 (2012) (**BR 10**). When it comes to questioning an individual about possession of a weapon, officers must have “proof of a describable object or of describable conduct which provided a reasonable belief” that the individual being questioned is in possession of a weapon. People v. Prochilo, 41 N.Y.2d 759 (1977) (**BR 11**). This conduct “must be more than subjective... [and] sufficient to induce an ordinarily prudent and cautious person under the circumstances to believe that criminality is at hand.” Behavior that is “readily susceptible of an innocent interpretation” is not sufficient to determine founded suspicion. People v. Howard, 147 A.D.2d 177 (1989) (**BR 12**). While, per Pennsylvania v. Mims, 434 U.S. 106 (1977) (**BR 13**), officers have the right to order the occupants of a vehicle to exit during a lawfully conducted car stop; officers do not have the right to frisk an individual based solely on a VTL infraction, and they must adhere to the same standard of reasonable suspicion as laid out above in order to frisk an individual during a car stop, unless that individual is under arrest. People v. Reid, 24 N.Y.3d 615 (2014) (**BR 14**).

While the BWC footage shows that Sergeant Cruz asked § 87(2)(b) “You don’t got nothing on you?” rather than specifically asking about “weapons,” Sergeant Cruz himself acknowledged that

he was referring to weapons when he asked the question. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations C, D, and E** be substantiated.

Allegation (F) Abuse of Authority: Sergeant Ariel Cruz searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (G) Abuse of Authority: Sergeant Ariel Cruz failed to provide § 87(2)(b) with a business card.

Allegation (H) Abuse of Authority: Sergeant Ariel Cruz failed to provide § 87(2)(b) with a business card.

It is undisputed that Sergeant Cruz searched the backseat of the taxi as Police Officer Angels frisked § 87(2)(b) [REDACTED]

Sergeant Cruz stated that he searched the backseat of the vehicle, where § 87(2)(b) [REDACTED] had been sitting, and he only searched § 87(2)(b) [REDACTED] “reachable, lungeable areas.” This included underneath the front passenger seat, underneath the floor rug, and any area in the back seat that was in an arms-length vicinity of where § 87(2)(b) [REDACTED] had been sitting. Sergeant Cruz was searching for a weapon, based off § 87(2)(b) [REDACTED] earlier dipping motion. Sergeant Cruz did not have any reason to search the vehicle for weapons other than this dipping motion. During his search, Sergeant Cruz briefly spoke to the taxi driver, § 87(2)(b) [REDACTED] and asked him to move the front passenger seat forward. Sergeant Cruz never asked § 87(2)(b) [REDACTED] for consent to search his vehicle. Sergeant Cruz did not believe that he needed consent because he suspected that the vehicle contained a firearm. Sergeant Cruz did not offer or provide his business card to either § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED]. He did not provide this to § 87(2)(b) [REDACTED] because he was not the officer who frisked § 87(2)(b) [REDACTED] and so he did not believe that he was required to do so. He did not provide his business card to § 87(2)(b) [REDACTED] because he believed that he and § 87(2)(b) [REDACTED] had a positive interaction. Sergeant Cruz did not believe that he was required to provide his business card to § 87(2)(b) [REDACTED] because he did not conduct a “front-to-bumper” search and instead only searched § 87(2)(b) [REDACTED] “reachable, lungeable areas.”

Sergeant Cruz’s BWC footage (**BR 01**) shows that, at timestamp 02:00, Sergeant Cruz begins searching the backseat of the taxi, including underneath the seats, underneath the floor mats, and in the seat pockets. Sergeant Cruz does not speak to § 87(2)(b) [REDACTED] before beginning his search, nor does he ask for consent. At timestamp 02:30, Sergeant Cruz asks § 87(2)(b) [REDACTED] to move the front passenger seat forward. § 87(2)(b) [REDACTED] gets out of the vehicle, goes to the other side, and moves the seat forward. Sergeant Cruz continues his search, and he does not recover any weapons from this search. Sergeant Cruz does not search any other part of the vehicle aside from the backseat. Upon concluding his search, Sergeant Cruz does not offer his business card to either § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED].

Exceptions to the Fourth Amendment rule against warrantless searches of vehicles include the “automobile exception,” which permits the warrantless search of a vehicle when there is probable cause to believe said vehicle contains evidence of a crime. *People v. Galak*, 81 N.Y.2d 463 (1993) (**BR 15**). As per *People v. Hayden*, 155 A.D.3d 1309 (2017) (**BR 16**), during a vehicle stop, an officer may seek consent to search the vehicle if the officer has founded suspicion of criminality. This consent must be “voluntarily given, and not the result of duress or coercion, express or

implied, by the actions of the law enforcement authorities.” People v. Quagliata, 53 A.D.3d 670 (2008) (BR 17).

§ 87(2)(g)

It is therefore recommended that **Allegation F** be **substantiated**.

New York City Administrative Code § 14-174 (BR 18) requires that officers provide their business cards upon the search of a person or property, including vehicles, except when a summons is issued or an arrest is made.

§ 87(2)(g)

it is recommended that

Allegations G and H be **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Police Officer Angels has been a member of service for 5 years and has been a subject in 16 other CCRB complaints and 50 other allegations, of which one allegation was substantiated:
 - 202003712 involved one substantiated allegation of Force – Pepper Spray against Police Officer Angels. The Board recommended charges, and the NYPD did not impose discipline.

- Sergeant Cruz has been a member of service for 12 years and has been a subject in 14 other CCRB complaints and 44 other allegations, of which 10 allegations were substantiated in three cases:
 - 202203606 involved substantiated allegations of Question, Search (of person), Stop, Threat of Arrest, Unlawful Summons, Vehicle Search, and Discourtesy – Word against Sergeant Cruz. The Board recommended charges, and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]
 - 202208690 involved substantiated allegations of Frisk and Stop against Sergeant Cruz. The Board recommended charges, and the NYPD imposed Command Discipline A.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- A Notice of Claim search request was submitted to the NYC Comptroller’s Office on April 22nd, 2024 (BR 22). The results will be attached to this case upon receipt.

- [REDACTED] § 87(2)(b) [REDACTED]
[REDACTED] (b) [REDACTED]
[REDACTED] (3)&(4) [REDACTED]
[REDACTED] 87(2) [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 02

Investigator:	<u>Teecie Dove</u>	<u>Investigator Teecie Dove</u>	<u>April 25th, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>4/25/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date